



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8952
(FIRST REVISION)

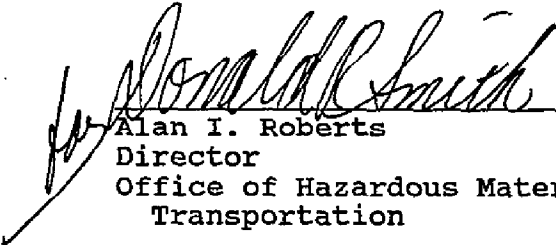
OCT 10 1990

1. Trojan Corporation, Spanish Fork, Utah, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a high explosive for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of a DOT Specification 21C fiber drum for transporting desensitized HMX (cyclotetramethylene tetranitramine), and provides no relief from any regulation other than as specifically stated.
2. BASIS. This exemption is based on an application from Trojan Corporation's application dated June 12, 1990, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
3. HAZARDOUS MATERIALS (Descriptor and class). Three types of desensitized HMX containing 1%, 2% and 4% desensitizer, all classed as Class A explosive.
4. PROPER SHIPPING NAME (49 CFR 172.101). High explosive.
5. REGULATION AFFECTED. 49 CFR 173.65.
6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.
7. SAFETY CONTROL MEASURES. Packaging prescribed is DOT Specification 21C fiber drum. Net weight of explosive may not exceed 200 pounds.
8. SPECIAL PROVISIONS.
 - a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with, and a current copy of this exemption is maintained at each facility from which such reoffering occurs.
 - b. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
 - c. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

9. REPORTING REQUIREMENTS. Any incident involving loss of packaging contents or packaging failure must be reported to the Office of Hazardous Materials Transportation as soon as practicable.

10. EXPIRATION DATE. September 30, 1992.

Issued at Washington, D.C.:



Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

OCT 10 1990

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA.